

26STCV04751 26STCV04751

County: los-angeles

Division: Civil Law and Motion

Department: 413

Hearing date: 2026-07-16

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Case Number: 26STCV04751 Hearing Date: July 16, 2026 Dept: 413

TENTATIVE RULING

HEARING DATE: 07/16/2026

CASE NUMBER: 26STCV04751

CASE NAME: MATTHEW DAMIAN KRAMER vs

DOUGLAS C FOWLER

MOVING PARTY: Plaintiff/Cross-Defendant Matthew

Damian Kramer

OPPOSING PARTY: Defendant/Cross-Complainant Douglas

C. Fowler

PROCEEDING: SPECIAL MOTION TO STRIKE

UNDER CCP SECTION 425.16 [ANTI-SLAPP]

RULING SUMMARY: Plaintiff/Cross-Defendant Matthew

Damian Kramer's Special Motion to Strike Under Code of Civil Procedure § 425.16

(Anti-SLAPP) is granted. Plaintiff/Cross-Defendant

is ordered to file an Answer to the remaining claims in the Cross-complaint

within 10 days. The Court sets an Order

to Show Cause re Answer to Cross-complaint for, and continues the Case

Management Conference to _____, 2026, at 8:30AM.

Background

On

February 13, 2026, Plaintiff Matthew Damian Kramer ("Kramer") filed his

Complaint against Defendant Douglas C. Fowler ("Fowler"), alleging eight causes

of action for (1) Breach of the Implied Warranty of Habitability; (2)

Harassment in Violation of the Los Angeles Tenant Anti-Harassment Ordinance

(Los Angeles Municipal Code ("LAMC") § 45.33 et seq.); (3) Violation of

Civ. Code § 789.3; (4) Retaliation in Violation of Civ. Code § 1942.5; (5)

Disability and Sex Discrimination in Violation of Gov. Code § 12955; (6)

Failure to Reasonably Accommodate Disability in Violation of Gov. Code §

12955(f); (7) Intentional Infliction of Emotional Distress ("IIED"); and (8)

Breach of the Covenant of Quiet Enjoyment.

Kramer

alleges that he moved into the property located at 11120 Nassau Avenue,

Sunland, California, owned by Fowler, on or about December 1, 2024 and was

assigned a bedroom. Plaintiff contends that he had to clear out the room he was

renting himself and, due to the issues with the bathroom, shower, and common areas, Kramer was effectively confined to the bedroom. Kramer further alleges that his bedroom did not have air conditioning, he never received a parking space, and he was subjected to restrictions regarding noise and use of common areas while other residents were not subject to the same treatment. Kramer claims that he was made to engage in physical labor despite his physical limitations.

On

March 30, 2026, Fowler filed his Cross-Complaint, alleging six causes of action for (1) Breach of Oral Contract, (2) Private Nuisance, (3) Abuse of Process, (4) Defamation, (5) Promissory Fraud, and (6) IIED.

Fowler

alleges that he rented a room in his house to Kramer due to Kramer's need for temporary housing through an oral agreement that Kramer would do tasks relating to task management and household assistance, equating to 20 hours of work in those two months and, ultimately, Kramer's actions devolved, leading to various actions such as erroneous calls to the police, and the oral agreement was breached. Fowler further alleges immense stress and fear to himself and others.

On

April 6, 2026, Kramer filed this Special Motion to Strike Under Civ. Code § 425.16 (Anti-SLAPP). On April 13, 2026, Fowler filed his Answer to Kramer's Complaint.

On

April 28, 2026, Fowler filed an Ex Parte Application for Leave to File a First

Amended Cross Complaint. While the application was denied on an ex-parte basis,

the motion remained on calendar until Fowler withdrew it.

On June

22, 2026, Fowler filed his Opposition to Kramer's Special Motion to Strike

Under Civ. Code § 425.16 (Anti-SLAPP). On

July 6, 2026, Kramer filed his Reply.

LEGAL STANDARD

In determining whether to grant or deny a special

motion to strike, the Court engages in a two-step process. (See, e.g., *Shekhter v.*

Fin. Indemn. Co. (2001) 89 Cal.App.4th 141, 150.) This process

is essentially a “summary-judgment-like procedure at any early stage

of the litigation.” (*Varian Med. Sys., Inc. v. Delfino* (2005) 35 Cal.4th

180, 192.) “First, the court must determine whether defendant has made a

threshold showing that the challenged cause of action ‘arises from’ a protected

activity. Second, if the defendant makes this showing, the trial court

must determine whether the plaintiff has established a

probability of prevailing on the claim.” (*Optional Capital, Inc. v. Das*

Corp. (2014) 222 Cal.App.4th 1388, 1398.) “[T]he statutory

phrase 'cause of action . . . arising from' means simply that the

defendant's act underlying the plaintiff's cause of action must itself have

been an act in furtherance of the right of petition or free speech.

[Citations.] In the SLAPP context, the critical point is whether the

plaintiff's cause of action itself was based on an act in furtherance of the

defendant's right of petition or free speech." (City of Cotati v. Cashman (2002)

29 Cal. 4th 69, 78.)

"The moving defendant's burden is to demonstrate that the

act or acts of which the plaintiff complains were taken 'in furtherance of the

[defendant]'s right of petition or free speech under the United States or

California Constitution in connection with a public issue,' as defined in the

statute. (Cal Code Civ. Proc. §425.16, subd. (b)(1).) If the court finds such a

showing has been made, it then determines whether the plaintiff

has demonstrated a probability of prevailing on the claim." (Equilon

Enterprises v. Consumer Cause, Inc. (2002) 29 Cal. 4th 53, 67.)

¿

If the special motion to strike is granted, the court must

enter judgment for the defendant.¿ (DuPont Merck Pharmaceutical Co. v.

Superior Court¿(2000) 78 Cal.App.4th 562, 564.)¿ No leave to amend may be

given.¿ (Schaffer v. City and County of San Francisco¿(2008) 168

Cal.App.4th 992, 1005.)²

EVIDENTIARY

OBJECTIONS

Objection No. 1

[Entire Fowler Declaration, paragraphs 1–10, including the purported

attestation at page 2, lines 20–24: “I declare under the laws of the State of

California that the foregoing is true and correct.”] – Sustained. (See Code

Civ. Proc. § 2015.5.)

The remainder of

the objections are premised on Fowler's Declaration. Objection No. 1 addresses

the Fowler Declaration as a whole and the Court need not rule on the subsequent

objections.

DISCUSSION

Kramer moves to strike the

following:

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The Second Cause of Action (Private Nuisance),

including paragraphs 15 through 22;

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The Third

Cause of Action (Abuse of Process), including paragraphs 23 through 25;

.

The Fourth Cause of Action (Defamation),

including paragraphs 26 through 27; and

.

The Sixth Cause of Action (Intentional

Infliction of Emotional Distress), including paragraphs 32 through 36.

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The allegations in the general allegations

section of the Cross-Complaint that arise from protected activity, including

paragraphs 6, 7, 8, and 10, as well as paragraphs 4 through 11 to the extent

they are incorporated into and form the basis of the challenged causes of

action.

A.

First Prong: Arising from

Protected Activity

The first prong of the analysis is whether

the claims in the Cross-complaint arise out of protected activity. Whether the

conduct sued upon arises from protected activity is determined from

the gravamen of complainant's cause of action or claim. (Anderson v. Geist (2015),

236 Cal.App.4th 79, 85 “[i]t is the principal thrust or gravamen of the plaintiff’s cause of action that determines whether the SLAPP statute applies, and when the allegations referring to arguably protected activity are only incidental to a cause of action based essentially on nonprotected activity, collateral allusions to protected activity should not subject the cause of action to the SLAPP statute”] [internal citations omitted]; see also *Trilogy at Glen Ivy Maintenance Association v. Shea Homes, Inc.* (2015) 235 Cal.App.4th 361; *Optional Capital, Inc. v. Das Corporation* (2014), 222 Cal.App.4th 1388.)

Kramer contends that the gravamen of the challenged causes of action is his communication with law enforcement and government agencies, which he contends is protected, citing to *Chabak v. Monroy* (2007) 154 Cal.App.4th 1502 (“Chabok”) and *Comstock v. Aber* (2012) 212 Cal.App.4th 931, 942 (“Comstock”).

Fowler argues that Kramer’s motion is cursory and lacking in specific allegations, emphasizing that *Jarrow Formulas, Inc. v. LaMarche* (2003) 31 Cal.4th 728 (“Jarrow”) states that to satisfy the first prong a plaintiff must state and substantiate a legal claim. (See Opp. 4:2-5.) Fowler further argues that a court has discretion to go beyond the allegations of protected activity, citing *City of Cotati v.*

Cashman (2002) 29 Cal.4th 69 ("Cotati"). According to Fowler, Kramer's actions have caused him to lose income through alienation of Fowler's paying tenant and the lack of remuneration for Kramer's stay. Fowler then sets forth the basis of each cause of action. Fowler emphasizes that there was no protected activity where an action did not arise from either the service of a notice or the filing of an unlawful detainer under Copenbarger v. Morris Cerulo World Evangelism (2013) 215 Cal.App.4th 1237 and argues that this parallels the instant action as Fowler served Kramer with a 30-day notice.

Kramer contends that Fowler's Opposition attempts both to recast this action as a general tenancy dispute involving rent, occupancy, and conditions inside the home and to reverse the anti-SLAPP burden. Kramer notes that Fowler's Opposition confirms that the relief Fowler seeks is based on communication to the police and government agencies.

Regarding the allegations that the police phone calls by Kramer were erroneous,

Kramer directs the parties and the Court to Equilon Enterprises, LLC v.

Consumer Cause, Inc. (2002) 29 Cal.4th 53 ("Equilon"). Kramer

reiterates that Fowler's claims rest on protected activity (i.e., protected police reports).

In Kramer's Reply, Kramer presents new

argument that the challenged claims fail as a matter of law because they are

neither legally sufficient nor factually substantiated. The Court does not address these new arguments. Under general rule of motion practice, new evidence or arguments raised for the first time in reply papers are allowed only in exceptional cases. (Jay v. Mahaffey (2013) 218 Cal.App.4th 1522, 1537-1538.) To the extent that they apply to the second prong and relate to arguments in the moving papers, the Court will discuss them as needed below.

The specific instances that Fowler alleges in his Cross-Complaint

that are relevant to Defendant's free speech claim are:

.

After this altercation with Neighbor A, Mr.

Kramer had tried to acquire a temporary restraining order against the neighbor

and demanded that Mr. Fowler lie to the police to support his claims. Mr.

Kramer offered a "pre-interview" script, created to fabricate a story to

police. Fowler refused all demands regarding vilifying his neighbor.

(Cross-Complaint ¶ 5.)

.

On April 21st, 2025, Mr. Fowler served Mr.

Kramer a thirty-day eviction notice due to the ongoing conflict and Kramer's

demands to lie to police. Approximately forty-five minutes later, Mr. Kramer

calls the police and falsely accuses Mr. Fowler of being a "slumlord." After

police arrive, they determine that it was a civil dispute with no crime

committed. (Id. ¶ 6.)

.

The very next day, on April 22nd, 2025, Mr.

Kramer began calling various government entities, including building and

safety, code enforcement, and the health department, to complain about falsely

alleged poor living conditions. Out of all the entities Mr. Kramer called, only

code enforcement came to do an inspection, leading Mr. Fowler to take days off

of work to accommodate their arrival. Code enforcement inspectors found no

errors, violations, or issues that required any repairs. (Id. ¶ 7.)

.

Later, due to immense stress and duress, Mr.

Fowler resorted to tearing up the thirty-day eviction notice to placate Mr.

Kramer and ease the harassment. During this time, the frequent retaliatory

calls to police and government entities caused Mr. Fowler to take time off of

work because of the immense stress. (Id. ¶ 8.)

.

In February 2026, an instance of erroneous calls

to police authorities occurred when Mr. Fowler was sitting in the living room

while in the process of printing a three-day pay or quit notice intended for

Mr. Kramer. Given the past altercations and fear of an outburst, Mr. Fowler lowered his office chair, thereby slouching, to let Mr. Kramer pass by. While walking by the glass sliding door, Mr. Kramer did notice and calmly asked Mr. Fowler, "What are you doing there?" Mr. Kramer then told whoever he was on the phone with that he would call them back, and Mr. Fowler resorted to abandoning his plans to instead go back into his bedroom after thinking that the interaction was over. Approximately 20-30 minutes later, Mr. Fowler was notified that police were inside of his house and that Mr. Kramer falsely alleged that Mr. Fowler had curled up into a ball under the desk and intentionally jumped out to startle Mr. Kramer.

.

Mr.

Kramer made frequent unjustified police calls which caused immense undue stress.

(Id. ¶ 16.)

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Many

unjustified and retaliatory calls to public health services. (Id. ¶ 17.)

.

Mr.

Kramer made multiple erroneous calls to police authorities, thereby abusing government

systems. (Id. ¶ 24.)

.

Mr. Kramer made retaliatory and falsely alleged

calls to health inspectors in order to maliciously retaliate after being served

the thirty-day eviction notice. All within the bounds of abuse of government

systems. (Id. ¶ 25.)

.

Mr.

Kramer stated to police that Mr. Fowler was a “slumlord,” further injuring his reputation

as a landlord. (Id. ¶ 26.)

.

Mr.

Kramer falsely alleged to police that Mr. Fowler intentionally and maliciously startled

Mr. Kramer on the incident stated in paragraph 10. (Id. ¶ 27.)

.

Mr. Kramer lied to police and health departments

about Mr. Fowlers status as a respectable landlord and about the condition of

his home. All lies told by Mr. Kramer propagate the false notion that Mr.

Fowler deserves to be financially and monetarily harmed. (Id. ¶ 34.)

False police reports are illegal conduct

and are not an act in furtherance of the constitutional rights of
petition or free speech under Civ. Proc. § 425.16(b)(1). (*Lefebvre v.*
Lefebvre (2011) 199 Cal. App.4th 696 [citing *Wilcox v.*
Superior Court (1994) 27 Cal.App.4th 809 at 819.]) When
allegations of making false reports are controverted, they are insufficient
to render that alleged conduct unlawful as a matter of law and
outside the protection of section 425.16.
(*Kenne v. Stennis* (2014), 230 Cal.App.4th 953,
967 [citing *Dwight R. v. Christy B.* (2013) 212 Cal.App.4th
697, 712 ["mere allegation that [the defendant] engaged in unlawful ...
activities is insufficient to render [the defendant's] alleged actions unlawful
as a matter of law and outside the protection of ... section 425.16"]; *Chabak,*
supra, 154 Cal.App.4th 1502, 1512 [the defendant's allegedly false
report to police that the plaintiff inappropriately touched her was deemed
protected activity because there was no uncontroverted evidence showing the
report to be false]; *Siam v. Kizilbash* (2005) 130
Cal.App.4th 1563, 1569–1570 [defendant's allegedly false report to school
official was protected activity, notwithstanding plaintiff's allegation of
falsity, because no uncontroverted evidence showed that it was
false].) "An activity may be deemed unlawful as a matter of law when the

defendant does not dispute that the activity was unlawful, or uncontroverted

evidence conclusively shows the activity was unlawful.” (Dwight, *supra*,

212 Cal.App.4th 697 at 712.)

In his motion, Kramer contests that the police reports are

illegal and false. Based on the case law cited above, where, as here, allegations

of making false reports are controverted, they are insufficient to render that

alleged conduct unlawful as a matter of law and outside the protection of

section 425.16. (See Chabak, *supra*, 154 Cal.App.4th 1502, 1512

[defendant's allegedly false report to police that the plaintiff

inappropriately touched her was deemed protected activity because there was no

uncontroverted evidence showing the report to be false]; see also Dwight R.

v. Christy B. (2013) 212 Cal.App.4th 697, 712 [“mere allegation that [the

defendant] engaged in unlawful ... activities is insufficient to render [the

defendant's] alleged actions unlawful as a matter of law and outside the

protection of ... section 425.16”] and Siam v. Kizilbash (2005) 130

Cal.App.4th 1563, 1569–1570 [defendant's allegedly false report to school

official was protected activity, notwithstanding plaintiff's allegation of

falsity, because no uncontroverted evidence showed that it was false].) Thus,

Kramer meets his initial burden, and the burden shifts to Fowler to demonstrate

a probability of prevailing.

Fowler's citations to Jarrow; Cotati; Copenbarger; and Navellier v. Sletten (2003)

106 Cal.App.4th 763, do not change the application of the legal standard above.

B.

Second Prong: Probability of

Success

Fowler has presented no evidence

from which the Court could find that he has made a prima facie showing that he

would prevail on his claims. He has not

met his burden to show by admissible evidence a probability of prevailing on

the merits on his Cross-complaint.

In sum, Fowler does not meet his

burden on the second prong of the anti-SLAPP analysis.

C.

Attorneys' Fees

As the prevailing party, Cross-defendants

are entitled to reasonable attorney's fees, which may be requested in a

separately noticed motion. (Code Civ. Proc. § 425.16(c)(1). "[A] prevailing

defendant on a special motion to strike shall be entitled to recover his or her

attorney's fees and costs. (Id.) "Any SLAPP defendant who brings a

successful motion to strike is entitled to mandatory attorney fees." (Ketchum

v. Moses (2001) 24 Cal.4th 1122, 1131.)

Kramer indicates he intend to file

a motion for attorney's fees after the hearing on this motion. (See Mtn. at 14:12-15.)

Conclusion¿

Plaintiff/Cross-Defendant

Matthew Damian Kramer's Special Motion to Strike Under Code of Civil Procedure §

425.16 (Anti-SLAPP) is granted. Plaintiff/Cross-Defendant

is ordered to file an Answer to the remaining claims in the Cross-complaint

within 10 days. The Court sets an Order

to Show Cause re Answer to Cross-complaint for, and continues the Case

Management Conference to _____, 2026, at 8:30AM.

Date: 07/16/2026 _____¿

William E. Weinberger

Judge, Los Angeles Superior Court